

TENTATIVE RULINGS FOR September 15, 2026
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

SHAHRAM KARIMIAN
v.
VOLKSWAGEN GROUP OF AMERICA, INC., et al.
CIVSB2509250

Motion: **Judgment on the Pleadings** (Complaint)
Movant: Defendant Kienle Motor Sports, LLC dba Audi Ontario
Respondent: Plaintiff Shahram Karimian

PROCEDURAL/FACTUAL BACKGROUND

This is a lemon law litigation. On April 2, 2025, Plaintiff Shahram Karimian filed his Complaint against Volkswagen Group of America, Inc., and Kienle Motor Sports, LLC dba Audi Ontario. The Complaint pleads 4 causes of action: (1) breach of express warranties against Volkswagen, (2) breach of implied warranties against Volkswagen, (3) violation of Civil Code section 1793.2, subdivision (b), and (4) negligent repair against Kienle. Defendants answered.

The Complaint alleges Karimian leased on July 17, 2022, a 2022 Audi RS E-tron GT, which was covered by manufacturer warranties. The vehicle had defects in its electrical, structural, suspension, and transmission systems. Although the vehicle was taken in for repairs, Volkswagen could not repair the defects (§§9-20). Additionally, the vehicle was delivered to Kienle, who negligently failed to store, prepare, and repair the vehicle (§§69-72).

Defendant Kienle moves for judgment on the pleading (JOP) on the 4th cause of action.¹ Plaintiff Karimian opposes. Defendant Kienle replies.

DISCUSSIONS

Statement of the Law

A party may bring a motion for judgment on the pleadings (JOP) after filing an answer and the time to demurrer has expired. (Code Civ. Proc., §438, subd. (b)(1) and (f); *Evans v.*

¹ In the provided meet-and-confer declaration, Counsel attests to matters and attaches an exhibit that go beyond addressing the meet and confer efforts. Those portions and the document (which is not requested to be judicially noticed) are improper, and thus, they are ignored.

California Trailer Court, Inc. (1994) 28 Cal.App.4th 540, 548 [*Evans*].) If the moving party is the defendant, then a motion for judgment on the pleading is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., §438, subd. (c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., §438, subd. (d).)

Essentially, a JOP performs the same function as a general demurrer, i.e., it attacks only the defects disclosed on the face of the pleading or by matters that are judicially noticed. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) As such, the JOP admits the truth of all material facts alleged in the complaint. (*Evans, supra*, 28 Cal.App.4th at p. 549.)

Before filing a JOP, the moving party shall meet and confer, at least 5 days before the motion is filed, in person, by telephone, or by video conference, to see if a resolution can be reached on the objections to the pleading. (Code Civ. Proc., §439, subd. (a)(1)-(2).) With the JOP, the moving party shall submit a declaration stating (a) how the parties met and conferred and no resolution was reached, or (b) the opposing party failed to respond to the meet and confer requests or failed to meet and confer in good faith. (Code Civ. Proc., §439, subd. (a)(3).)

Analysis

The Court finds that the moving party made sufficient efforts to satisfy the meet and confer requirement.

Substantively, Defendant Kienle argues that the negligent repair cause of action is deficiently pled, fails to plead the amount of damages, and is barred by the economic loss rule.

Sufficiently Pled. For a claim of negligent repair, the traditional negligence elements apply, i.e., (1) legal duty, (2) breach of the legal duty, (3) causation, and (4) damages. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213; *Sabicer v. Ford Motor Company* (C.D.Cal. 2019) 362 F.Supp.3d 837, 840.) A person who undertakes the repair of a product owes a duty to do so without negligence, i.e., a duty to perform those services in a good and workmanlike manner. (Civ. Code, §1796.5; *Sabicer v. Ford Motor Company, supra*, 362 F.Supp.3d at pp. 840-41.)

The Complaint alleges Karimian delivered the Subject Vehicle to Kienle for repairs on numerous occasions. It owed him a duty to use ordinary skill in storing, preparing, and repairing the Subject Vehicle. It breached that duty when it failed to properly store, prepare, and repair the Subject Vehicle. Because of that negligence, Karimian incurred damages (¶¶69-72).

Generally, a plaintiff is not required to plead negligence with any particularity. (*Hoyem v. Manhattan Beach City Sch. Dist.* (1978) 22 Cal.3d 508, 513 [“Under well established principles, such general allegations of negligence, proximate causation and resulting injury and damages suffice to state a cause of action....”].) A plaintiff is obligated to plead only the ultimate facts. (Code Civ. Proc., §425.10; *Doheny Park Terrace Homeowners Assn., Inc. v. Truck Insurance Exchange* (2005) 132 Cal.App.4th 1076, 1099.) However, if the pleaded facts of negligence and injury do not naturally give rise to an inference of causation, then the plaintiff must plead specific facts that establish the inference that one thing caused another. (*Bockrath v. Aldrich Chemical Co. Inc.* (1999) 21 Cal.4th 71, 78.) In particular, “the plaintiff must allege facts, albeit as succinctly as possible, explaining how the conduct caused or contributed to the injury.” (*Ibid.*)

Defendant claims that the Complaint fails to plea how Kienle owed a duty, the dates of the negligent repair, the types of repairs that were negligently performed, and the type of damages incurred do not render the Complaint insufficiently pled. These are the inquiries that Kienle should have sought in discovery. The lack of such particulars does not render the negligence-based cause of action failing to plead the ultimate fact of duty, breach, and causation.

Additionally, the allegations that Kienle failed in its duty to properly store, prepare, and repair the Subject Vehicle caused damages infers that the lack of storing, preparing, and repairing the vehicle led to damaging the vehicle.

The cause of action for negligent repair is sufficiently alleged under the general allegations of the ultimate facts.

Damages Pled. Generally, the complaint shall plead the amount of damages demanded. (Code Civ. Proc., §425.10, subd. (a)(2); *Van Sickel v. Gilbert* (2011) 196 Cal.App.4th 1495, 1520.) The exceptions are the complaint pleads actual or punitive damages in a personal injury or wrongful death action. (Code Civ. Proc., §425.10, subd. (b); Civ. Code, §3295, subd. (e); *Van Sickel v. Gilbert*, *supra*, 196 Cal.App.4th at p. 1520.)

The Complaint generally pleads general, special, actual, incidental, and/or consequential damages without specifying an amount (Prayer at ¶¶1 & 3).

Here, nothing in the Complaint's allegations implicates a personal injury; therefore, Plaintiff Karimian needs to specify the amount of damages sought to be recovered.

Economic Loss Rule. The Economic Loss Rule provides that tort recovery for noninsurance contract breaches is precluded unless the alleged violation arises from an independent duty founded on principles of tort law. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922 ["In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage."] [*Sheen*]; *Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 515.)

In Opposing, Plaintiff argues that the economic loss rule does not bar claims of negligence in performance under service contracts. Now, in certain instances, an exception is permitted under professional service contracts (e.g., a claim against an attorney can be both in tort and contract [*Neely v. Magana, Olney, Levy, Cathcart & Gelfand* (1971) 6 Cal.3d 176, 180-81]). (*Sheen*, *supra*, 12 Cal.5th at pp. 922, 929.) But in that context, the professional duty is independent of the contract because the parties have a special or fiduciary relationship that imposes a duty of care to avoid economic injury to the plaintiff. (*Ott v. Alfa-Laval Agri, Inc.* (1995) 31 Cal.App.4th 1439, 1448; *Martin v. U-Haul Co. of Fresno* (1988) 204 Cal.App.3d 396, 412.) Generally, a special or fiduciary relationship does not arise from general commercial contractual relationships. (*Martin v. U-Haul Co. of Fresno*, *supra*, 204 Cal.App.3d at p. 412.)

Here, Kienle providing general commercial repair work on the Subject Vehicle will not create a special or fiduciary relationship to establish duties existing outside of any warranty contract. The economic loss rule precludes suing in tort for damages arising from the contract between the litigating parties. (*Sheen*, *supra*, 12 Cal.5th 905, 922.) Kienle is not an alleged party to the warranty issued by Volkswagen. Its duty to properly prepare, store, and repair the vehicle is not on the face of the Complaint arising from any contractual relationship. (*See, e.g., Tasch v. Ford Motor Company* (C.D.Cal. 2018) 2018 WL 3956493, at p. *2 ["Defendants cite no law – and this Court is aware of none – for the proposition that only the warrantor may be held liable for repairs done pursuant to a warranty, even where the repairing party performs negligence."].)

Next, in contending the economic loss rule does not preclude the negligent repair cause of action, Plaintiff relies on *North American Chemical Co. v. Superior Court (Trans Harbor, Inc.)* (1997) 59 Cal.App.4th 764 ["*No. American Chemical*"]. In *No. American Chemical*, the Court of Appeal found when a commercial agreement between parties involves the performance of goods, a reasonable expectation and implied in law promise to perform the service with reasonable care exists. (*Id.* at p. 785.) The absence of a contract is not required to seek

economic loss from the negligent performance of services. (*Id.* at pp. 783-84.) The essential inquiry is whether the economic loss was foreseeable from the flow of the defendant's negligent performance of services. (*Ibid.*) If the six factors in *Biakanja v. Irving* (1958) 49 Cal.2d 647 are satisfied by the plaintiff, then he will be entitled to recover economic loss damages without the need to prove personal injury or property damage. (*No. American Chemical, supra*, 59 Cal.App.4th at pp. 782, 785.)

However, the problem with reliance on *No. American Chemical* is that subsequent California Supreme Court opinions, although not directly overruling, have ignored or distinguished it. (*Peregrine Pharmaceuticals, Inc. v. Clinical Supplies Management, Inc.* (C.D.Cal. 2015) 2015 WL 13309286, at p. *6.) In *Erlich v. Menezes* (1999) 21 Cal.4th 543, 551, after recognizing *No. American Chemical's* acknowledgment that the same wrongful act may constitute a breach of contract and tort, the Supreme Court made clear that a breach of contract only becomes tortious when it violates a duty independent of the contract arising from principles in tort law. Under this reasoning, the Supreme Court rejected a tort claim for negligent performance of a construction contract. (*Id.* at pp. 550-54.) Under *No. American Chemical*, the duty to perform competently on a service contract arises from an implied promise within the contract. It does not arise from tort principles independent of the service contract. Later, the Supreme Court reiterated this principle: "A person may not ordinarily recover in tort for the breach of duties that merely restate contractual obligations. Instead, '[c]ourts will generally enforce the breach of a contractual promise through contract law, except when the actions that constitute the breach violate a social policy that merits the imposition of tort remedies." (*Aas v. Superior Court (William Lyon Company)* (2000) 24 Cal.4th 627, 643, superseded by statute on other grounds as stated in *Rosen v. State Farm General Ins. Co.* (2003) 30 Cal.4th 1070, 1079.)

Under the California Supreme Court authority, negligent performance of a contract is a contractual breach giving rise to contractual, economic damages unless the duty exists independently of the contract, relates to property damage of a different part, or concerns fraudulent behavior. (*See, e.g., Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group* (2006) 143 Cal.App.4th 1036, 1043-44.)

In this case, Plaintiff has failed to alleged that Kienle performed work while under contract. The issued warranty imposes an obligation on Volkswagen. Kienle is not an alleged party obligated under the issued warranty. Thus, predicated on the allegations, Kienle's liability is not for negligent breach of a contract, which would be barred by the Economic Loss Rule.

Additionally, the economic loss rule does not preclude the recovery of economic damages to different property: "In summary, the economic loss rule allows a plaintiff to recover in strict products liability in tort when a product defect causes damage to 'other property,' that is, property *other than the product itself*. The law of contractual warranty governs damage to the product itself." (*Jimenez v. Superior Court (T.M. Cobb Company)* (2002) 29 Cal.4th 473, 483.) In applying the economic loss rule, the court must first determine what the product at issue is, and whether the injury is the product itself (for which recovery is barred by the economic loss rule) or to property other than the defective product (for which the plaintiff may recover in tort). (*Ibid.*)

The Complaint pleads generically that Kienle's negligent repairs were the cause of Karimian's damages. That generic allegation leaves open the door that some repair on the defective part damaged another part or the vehicle as a whole. (*See, e.g., Velasco v. Ford Motor Company* (S.D.Cal. 2022) 2022 WL 2287258, at p. *4 ["Multiple district courts, including this Court, have recognized the potential applicability of the component exception in cases involving

negligent repair claims against parties sought to be joined in breach of warranty cases against manufacturers.”].)

In that it is not clear from the face of the pleading that the negligently repaired product and the product damages are the same, and/or that the litigation flows from a service contract, it cannot be said the 4th cause of action is barred by the economic loss rule.

Therefore, the Court grants Defendants’ Judgment on the pleading due to the Plaintiff’s failure to plead a predicate damage amount, with leave to amend.

RULING

The Court rules as follows:

- (1) Grants Defendant Kienle’s Judgment on the Pleading to the 4th cause of action with 21 days leave to amend so Plaintiff Karimian may plead the amount of damages sought per Code of Civil Procedure section 425.10, subdivision (b)(2).
- (2) Orders Defendant Kienle, as the prevailing party, to provide formal notice of the Court’s ruling.

Dated: September 15, 2026

Judge Quintana Winter

GEORGE N. ZACARIAS

v.

GENERAL MOTORS LLC

Motion: **Motion for Compliance with CCP § 871.26 and Sanctions**
Movant(s): **Defendant General Motors LLC**
Respondent(s): **Plaintiff George N. Zacarias**

PROCEDURAL/FACTUAL BACKGROUND

At issue is a lemon law action. On February 18, 2025, Plaintiff George N. Zacarias filed a Complaint against Defendant General Motors LLC. The operative Second Amended Complaint, filed after the Court sustained GM's unopposed demurrer to Plaintiff's FAC, alleges the following five causes of action: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement-Concealment.

On March 9, 2026, the Court overruled GM's demurrer to the fourth and fifth causes of action; and sustained GM's demurrer to the first through third causes of action, without leave to amend. On March 10, 2026, GM answered.

Plaintiff alleges that he purchased a 2015 Chevrolet Tahoe on April 26, 2014, but defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including transmission defects, engine defects, and electrical defects. Despite being covered by warranties, GM failed to repair the vehicle within a reasonable time. GM also failed to provide a replacement or make restitution. (SAC ¶¶ 6-7 and 11-17.)

Now before the Court is GM's motion to compel compliance with initial disclosure requirements of Code of Civil Procedure section 871.26, subdivisions (b) and (f). In particular, GM argues that as part of the initial disclosures, Plaintiffs failed to provide documents that include repair orders and the sales or lease agreement as required by section 871.26, subdivision (f).

There is no dispute that the statutory scheme that includes section 871.26 applies to the case. Therefore, the Court denies GM's request for judicial notice of the list of manufacturers who opted in to the statutory scheme under which section 871.26 applies.

GM contends that as a result of Plaintiff's refusal to provide the repair orders and sales contract as required, it is unable to investigate Plaintiff's claims, defend itself, and prepare for mandatory mediation. Even though not required, it attempted to meet and confer, but Plaintiff has not produced any documents. GM asserts that the statutory deadline for Plaintiff's initial disclosures was November 13, 2025. GM seeks \$1,500 in sanctions as provided for under section 871.26, subdivision (j)(1).

Plaintiffs oppose, arguing that the day before GM filed this motion, it filed a motion for summary judgment or, alternatively, summary adjudication. With that motion, GM submitted counsel's declaration in which counsel admits Plaintiff produced 16 pages of documents in discovery, along with 7 pages of initial disclosures, and that Plaintiff's documents production included the retail installment sale contract and repair orders. Plaintiff's initial disclosures and document production is attached as Exhibit 5 to GM's MSJ/MSA. Plaintiff argues that the

documents GM seeks to compel are documents that Plaintiff already produced and that he authenticated the RISC at his deposition. (Smith Decl. ¶¶ 6, 7 and Exh. A.) Plaintiff argues that given compliance already occurred, the motion is moot and sanctions should be denied. He also argues that GM's argument that it is unable to prepare for mediation is without merit given GM has filed an MSJ/MSA and it also served an amended statutory 998 offer on August 13, 2026. (*Id.* ¶ 9.)

To date, GM has not replied.

In light of Plaintiff's opposition and evidence provided, and the fact GM has an MSJ/MSA pending, the Court denies the motion. Plaintiff made initial disclosures. When the Stark declaration submitted in support of the MSJ/MSA is reviewed, Stark states that Plaintiff's document production consists of the RISC and repair orders. (Pl's Exh. A – Stark Decl. ¶ 6.) In addition, GM produced the RISC as an exhibit in support of its MSJ. (*Id.* – Stark Decl. ¶ 5.) Further, when Plaintiff's initial responses attached to the Stark Declaration are reviewed, he stated he is not in possession of the purchase/lease document and that responsive documents are in GM's possession or can be obtained from the dealership.

RULING

Court rules as follows:

1. Denies GM's motion in its entirety, and
2. Orders Plaintiff, as the prevailing party, to serve formal notice of the Court's ruling.

Dated: September 15, 2026,

Judge Quintana Winter